

## 25CHCV02919 25CHCV02919

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-07-30

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=CHA%2CF49%2C07%2F30%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C07%2F30%2F2026)

Source SHA-256: a0f3068a213b69b22c04e6e73ebf53e19870af2c39cc698009eb96184d0500a1

Case Number: 25CHCV02919 Hearing Date: July 30, 2026 Dept: F49

Dept. F49

Date: 7/30/26

Case Name: Jorge Ramos vs. Lowe's Home Centers, LLC;  
Edward Ruíz; and Does 1-50

Case No. 25CHCV02919

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 30, 2026

MOTION TO STRIKE

Los Angeles Superior

Court Case No. 25CHCV02919

Motion filed: 3/10/26

MOVING PARTY: Defendant Lowe's Home Centers, LLC

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court striking the second count of Plaintiff's premises liability cause of action for willful failure to warn.

TENTATIVE RULING: The Motion to Strike is DENIED AS MOOT.

I.

#### BACKGROUND

This action arises from injuries allegedly suffered by Plaintiff Jorge Ramos ("Plaintiff") when an employee caused him to fall backwards in a Lowe's Home Improvement store. On August 15, 2025, Plaintiff filed the Complaint against Defendants Lowe's Home Centers, LLC ("Lowe's"), Edward Ruíz, and Does 1 through 50, alleging the following causes of action: (1) general negligence, and (2) premises liability. The premises liability claim includes two counts: Count One for negligence and Count Two for willful failure to warn.

On September 18, 2025, Lowe's filed an Answer.

On March 10, 2026, Lowe's filed the instant motion to strike Count Two of the second cause of action of the Complaint (the "Motion").

On July 17, 2026, at the request of Plaintiff, the Court entered dismissal of Count Two of the second cause of action of the Complaint (Compl., ¶ Prem.L3).

No opposition or reply papers have been filed.

II.

#### ANALYSIS

Upon motion by a party, a court may "strike any irrelevant, false, or improper matter inserted in any pleading ...

[or] all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subds. (a), (b).) A motion to strike may be directed against a whole pleading or any part of it. (§ 435, subd. (b)(1).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (§ 437.)

A. Dismissal of Premises Liability, Count Two for Willful Failure to Warn

Lowe's seeks an order striking the second count for willful failure to warn from the second cause of action of the Complaint for premises liability. Specifically, Lowe's requests that the Court strike Paragraph Prem.L3 of the Complaint.

As a preliminary consideration, the Court notes that, on July 17, 2026, Plaintiff requested dismissal of the willful failure to warn count, at Paragraph Prem.L3. The Court entered the dismissal as requested the same day. As the willful failure to warn count has been dismissed, is it no longer at issue, and the Motion is moot.

The Court therefore DENIES the Motion.

CONCLUSION

The Court DENIES AS MOOT Defendant Lowe's Home Centers, LLC's Motion to Strike.

Moving party to give notice.